SAVAGE DU PREEZ (PVT) LTD

versus

FLORENCE MOYO SYNDICATE MINE

AND

NKOSIPHILE KHUPHE

AND

THE MINISTER OF MINES AND MINING DEVELOPMENT

IN THE HIGH COURT OF ZIMBABWE
NDUNA J
BULAWAYO 11 FEBRUARY & 11 MARCH 2026

Application for Declaratory Relief in terms of Section 14 of High Court Act [Chapter 7:06]

Adv K. I Phulu with Mr Ncube, for the applicant
Adv L Nkomo with P. Ngwenya, for 1st and 2nd respondents

NDUNA J: This matter arises from a dispute concerning the ownership and exploitation of an old mining dump situated in the Gwanda mining district of Zimbabwe. The dispute involves competing claims to mining rights, the legality of mining operations being conducted on the dump, and preliminary objections raised by the respondents challenging the competence of the application before the court.

FACTUAL BACKGROUND

The dispute between the parties centers on an old mining dump situated partly within the Applicant's mining claims and extending onto adjacent land where the First and Second Respondents are conducting mining operations. The Applicant contends that the entire dump was created by its mining operations and therefore constitutes its property. It maintains that although a portion of the dump physically overlaps onto neighbouring land, ownership of the dump remains vested in the Applicant because it originated from its mining activities.

The Respondents dispute this assertion. Their position is that the portion of the dump that lies beyond the boundary of the Applicant's registered claims falls within the area where the First Respondent holds rights and where the Second Respondent is currently conducting mining operations. On that basis, they contend that they are entitled to mine the portion of the dump situated on their side of the boundary.

The First and Second Respondents have raised two preliminary objections (points *in limine*) seeking the dismissal of the application.

1ST AND 2ND RESPONDENTS' FIRST POINT *IN LIMINE*

The first point *in limine* relates to the validity of the company resolution relied upon by the Applicant. The Respondents argue that the resolution authorising William Paul Rowe to represent the Applicant is defective and therefore invalid. Their contention is that the resolution constitutes a blanket authorisation which does not specifically empower him to institute the present proceedings or to depose to the founding affidavit.

The Respondents rely on the principle that where a company institutes legal proceedings through a representative, a valid board resolution must exist authorising that specific litigation and empowering the deponent to depose to the relevant affidavit. They argue that the resolution relied upon by the Applicant does not satisfy these requirements.

Particular reliance is placed on the wording of the resolution annexed to the application as Annexure "A". The resolution states that William Paul Rowe was authorised to represent the company "in proceedings to be instituted against Mascot C, Reg Number 48428." The Respondents contend that this authorisation is defective because the present proceedings are not instituted against Mascot C but rather against Florence Moyo and Nkosiphile Khuphe, who are cited as the First and Second Respondents respectively.

The Respondents further argue that a mining location such as Mascot C is not a legal persona capable of being sued, and therefore a resolution authorising proceedings against Mascot C cannot constitute valid authority for litigation. They also point out that the resolution was passed on 28 November 2024, whereas the present application seeking a declaratory order was filed in

August 2025. On that basis, they contend that the resolution lacks the necessary specificity and cannot be said to authorise the present proceedings.

Consequently, the Respondents submit that the founding affidavit was deposed to without proper authority and that the entire application is therefore fatally defective and not properly before the court. They accordingly seek an order dismissing the application or striking it off the roll with costs.

APPLICANT'S RESPONSE TO POINT *IN LIMINE*

The Applicant disputes this objection. It argues, firstly, that the Respondents effectively abandoned the point by failing to pursue it in their heads of argument despite raising it in their opposing affidavits. The Applicant relies on authority to the effect that issues not pursued in heads of argument are generally regarded as abandoned.

In the alternative, the Applicant maintains that the resolution is valid and sufficiently specific. It argues that the reference to proceedings against Mascot C adequately identifies the dispute in question, particularly within the context of mining practice where disputes are commonly described by reference to the relevant mining claim. According to the Applicant, the resolution clearly authorised William Paul Rowe to represent the company in proceedings concerning the Mascot C claim, which is the very dispute presently before the court.

The Applicant further submits that a resolution authorising litigation does not need to specify the exact form of proceedings to be instituted, such as an application for a declaratory order, as the choice of legal procedure is ordinarily determined by legal practitioners once authority to litigate has been granted.

1ST AND 2ND RESPONDENT SECOND POINT IN LIMINE

The second point *in limine* raised by the Respondents concerns the existence of a material dispute of fact. The Respondents argue that the matter cannot properly be determined on the basis of affidavit evidence because there are fundamental factual disputes between the parties regarding ownership of the dump and the extent of the respective mining rights.

They submit that the conflicting versions presented in the affidavits create disputes which cannot be resolved without oral evidence and cross-examination. According to the Respondents, the Applicant ought to have foreseen these disputes and should therefore have instituted action proceedings rather than motion proceedings.

APPLICANT'S RESPONSE

The Applicant disputes the existence of any material dispute of fact. It argues that the central issue is straightforward and capable of determination on the papers. The Applicant maintains that the matter is not a boundary dispute but rather a question of ownership of a mining dump which originates from its registered mining claims and merely extends onto neighbouring land.

The Applicant contends that several key facts are either common cause or not genuinely disputed. These include the fact that the Applicant holds registered mining claims in the area, that the Respondents operate on adjacent land, that the mining dump exists and extends across the boundary between the parties' respective areas, and that the Applicant obtained a certificate of transfer to its mining claims in 2019 at a time when the dump was already in existence.

On the basis of these facts, the Applicant maintains that the dispute can be determined on the papers and that the Respondents' objection based on an alleged dispute of fact is without merit.

ISSUES FOR DETERMINATION

1. Whether the company resolution is valid
2. Whether or not there are material disputes of facts

APPLICATION OF THE LAW

Whether the company resolution is valid

The Respondents argue that the company resolution attached as annexure A is invalid as it is a blanket resolution which is not permitted in law. Applicant contends that the Respondents' preliminary point concerning the validity of the company resolution must be regarded as

abandoned because it was not pursued in the Respondents' heads of argument. That contention cannot be sustained in law.

The legal position is that a point of law which goes to the root of the proceedings may be raised at any stage of the litigation, provided that no prejudice is occasioned to the opposing party. In *Muchakata v Netherburn Mine 1996 (1) ZLR 153 (S),* KORSAH JA stated:

> "It is proper to raise a point of law, which went to the root of the matter, at any time, even for the first time on appeal, if its consideration involved no unfairness to the party against whom it was directed. If the order was void ab initio, it was void at all times and for all purposes. And the question of its validity could be raised at any time."

The issue of authority to institute proceedings on behalf of a company goes directly to the competence of the proceedings themselves. Where no valid authority exists, the proceedings are a nullity from inception. The Respondents were entitled to raise and persist with the point, as it strikes at the validity of the proceedings themselves. The Applicant's argument that the point was abandoned therefore has no merit.

The court must therefore examine whether the resolution relied upon by the Applicant constitutes valid authority for the institution of the present proceedings.

The applicable legal principles regarding corporate authority have been clearly articulated in several decisions of the High Court. In *Beach Consultancy (Private) Limited v Makonya & Anor* HH 696-21 MAKOMO J, after some commendably diligent analysis of the law held as follows at page 9; -

> "From the foregoing, I venture to state that a company may not grant general authority to a director or employee to represent it in future court cases that have not yet arisen at the time when the authority is granted."

The rationale for this requirement was further emphasised in *Romeo Mkandla v PPC Zimbabwe Ltd & Anor* HB 151-24*,* where KABASA J reaffirmed the principle that a corporate litigant must demonstrate that the company itself was aware of and consciously authorised the litigation in question. The court held that

> "*In Beach Consultancy (Private) Limited* v *Makonya & Anor* HH 696-21 MAKOMO J had occasion to deal with the issue regarding blanket authority. The learned Judge

> acknowledged that convenience may dictate that a blanket authority be given in some cases as it may be onerous for big corporates to routinely convene board meetings to pass resolutions granting an official to represent it each time such a corporate is engaged in litigation.
>
> Having said that the learned Judge proceeded to say:-
>
> "Unfortunately, this apparently convenient practice is in my view not supported by law. The current position of the law is that it must be shown that the corporate is aware of the proceedings that it is authorizing. The reason for insistence on the company being aware of the proceedings is to confirm that it is indeed the company that has taken the decision to participate in the court case and that it is not an unauthorized person who is dragging it to court without its knowledge."

The same principle was reiterated in *Arosume Property Development (Pvt) Ltd v Farai Olivia Mashonganyika HH143/25,* where the court held on *P7 that*

> "The resolution refers to all litigation involving all persons listed in the government gazette. It does not specify the persons it relates to by their names. It further relates to all such litigation involving the alleged unnamed persons. Clearly, the resolution gives blanket authority to commence all necessary litigation against all the unnamed persons and for the deponent to do so on behalf of the company. This is impermissible or improper".

Applying these principles to the resolution relied upon by the Applicant reveals defects.

The resolution produced by *Savage Dupreez (Pvt) Ltd* authorises *William Paul Rowe* "to represent the company in proceedings to be instituted against Mascot C, Reg Number 48428." This wording does not authorise proceedings against the parties cited in the present application. The current proceedings have been instituted against *Florence Moyo* and *Nkosiphile Khuphe*, yet neither of these individuals is mentioned in the resolution.

In addition, the wording of the resolution authorises representation in "proceedings to be instituted" without identifying the particular proceedings contemplated. This wording demonstrates that the resolution was made in anticipation of possible litigation rather than in respect of a specific and existing dispute placed before the board for consideration. Such anticipatory authority is precisely the form of blanket authorisation which the courts have consistently held to be impermissible. The resolution therefore does not constitute valid authority for *William Paul Rowe* to institute the present proceedings on behalf of the Applicant. The

founding affidavit was consequently deposed to without proper authority. In the absence of such authority, the application is not properly before the court and is fatally defective.

Accordingly, the Respondents' first point *in limine* is well founded both in fact and in law, the matter is therefore struck off the roll with costs to the applicant on ordinary scale without need to proceed to the other point raised however for completeness sake the court will deal

Whether or not there are material disputes of facts

The Respondents argue that the matter cannot be determined on the papers because the parties' affidavits reveal material disputes of fact. The applicable test was set out in *Supa Plant Investments (Pvt) Ltd v Chidavaenzi 2009 (2) ZLR 132 (H)* where the court observed that:

> "A material dispute of fact arises when such material facts put by the applicant are disputed and traversed by the respondent in such a manner as to leave the court with no ready answer to the dispute between the parties in the absence of further evidence."

Applying this test to the dispute, the court is faced with conflicting versions on issues that lie at the centre of the application.

Firstly, the parties dispute the status of the land on which the dump overlaps. The Applicant claims the land is open to prospecting, while the Respondents assert that it forms part of the First Respondent's registered mining claim known as Mascot C. If the Respondents' version is correct, the legal foundation of the Applicant's claim collapses. The court cannot resolve this issue from the papers alone.

Secondly, there is a direct dispute concerning the ownership and origin of the dump. The Applicant alleges that the dump was created by its own mining operations over many years. The Respondents contend that the dump material on the disputed land was accumulated by the First Respondent from her own mining activities. Ownership of the dump depends on which version is true, a matter that requires evidence and cannot be determined on affidavit.

Thirdly, the parties disagree on the history of the dump. The Applicant maintains that the dump existed long before the Respondents' activities, while the Respondents maintain that the

material was lawfully accumulated on the First Respondent's site prior to its conversion into a registered mining claim.

This disagreement again raises factual questions concerning the chronology of mining operations and the origin of the dump material. Such questions cannot be resolved merely by examining the affidavits. They require factual proof and the testing of evidence through oral testimony. The consequence of these competing versions is that the court is left with two irreconcilable narratives. On the one hand is the Applicant's account that the dump is an historic structure created entirely by its mining activities and merely overlapping onto open ground. On the other hand is the Respondents' account that the disputed land is now a registered mining claim and that the dump material located there was generated from their own mining operations.

These disputes go to the very basis of the relief sought ownership of the mining dump. The court is therefore left with two irreconcilable versions. The matter is consequently unsuitable for determination in motion proceedings, and the Respondents' point *in limine* regarding a material dispute of fact is well founded.

The matter is therefore struck off the roll with costs to the applicant at ordinary scale.

Bukhosi Ncube Attorneys, applicant's Legal Practitioners
Dube Legal Practice, 1st and 2nd respondent's Legal Practitioners